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via Epoline

Mannheim, June 7, 2024

European patent application no. 22726673.1
based on PCT/EP2022/061593
Applicant: **Roche Diagnostics GmbH**
F. Hoffmann-La Roche AG
Title: **PCT marker panels for early detection of sepsis**
Our ref.: **RD36640PCEP AD/OL/yd**

This is in response to the Communication pursuant to Rules 161(1) and 162 EPC issued by the European Patent Office

Please find attached an amended set of claims which shall form the basis for examination. It is requested to defer amendments to the specification until the Examining Authority has given its consent to an allowable set of claims.

1. Amendments (Art. 123(2) EPC)

1.1 The number of claims was reduced from 22 to 15. Thus, no claim fees are due.

1.2 New claims 1 to 8 correspond to previous claims 1 to 8, except that the feature of claim 9 (which has been deleted) was added to claim 7.

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1.3 New claims 9 and 10 correspond to previous claims 10 and 11.

1.4 New claim 11 combines the subject matter of previous claims 12 to 14 (with an optionally).

1.5 New claim 12 combines the subject matter of previous claims 15 and 16 (with an optionally).

1.6 New claim 13 combines the subject matter of previous claims 17 and 18 (with an optionally).

1.7 New claim 14 combines the subject matter of previous claims 19 and 20 (with an optionally).

1.8 New claim 15 combines the additional features of previous claims 21 and 22.

2. Comments on the Written Opinion accompanying the ISR

In the Written Opinion accompanying the ISR, the Searching Division took the opinion that the claims would lack novelty, inventive step and clarity. Applicant respectfully disagrees. In addition, the objections were only made in so far the claims pertain to invention 1 (which was the only searched invention). The objections however do not apply to inventions 2 to 8. In order to have the possibility to pursue one of the remaining inventions, we respectfully ask the Examining Division to issue an invitation to pay search fees - in case the Examining Division maintains the lack of unity objection made during the international phase.

3. Requests

With the comments above, it is respectfully requested to issue a Communication pursuant to Rule 71(3) EPC. In case the Examining Division cannot follow this request, a Communication pursuant to Article 94(3) EPC is herewith requested. In case the

Examining Division maintains the lack of unity objection, we request and invitation to pay further search fees.

As an auxiliary measure, oral proceedings are requested.

Dr. Heiko Oltmanns
European Patent Attorney

Encl.: amended claims, marked-up and clean copy